

Amendment No. 1 to SB1202

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1202

House Bill No. 671*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 40-11-204, is amended by adding the following new subsection:

(c)

(1) In the event of forfeiture by the principal, the surety may petition the court for release from their obligations as surety. The petition must be accompanied by a sworn affidavit detailing what good faith efforts were made to locate and assure the appearance of the principal.

(2) Upon the filing of a petition, the court shall hold a hearing during which the bondsman may state the good faith efforts made to locate and assure the appearance of the principal. The court shall include any such statement by the bondsman in its written order following the hearing.

(3) Upon a finding, by a preponderance of the evidence, that the bondsman has complied with the good faith effort requirements of this subsection (c), the court may release or exonerate the bondsman of the bondsman's obligations in the case.

(4) In considering whether good faith efforts were made by the bondsman to locate and assure the appearance of the principal, the court may inquire as to the following factors:

(A) Records retained by the surety as to the principal's contact information, place of residence, place of employment, known associations, or any other such record;

(B) Actions and steps taken by the surety to keep track of the principal's location;

(C) Actions and steps taken by the surety to locate the principal;

(D) Information obtained by the surety as to where the principal may be, even if that information is not conclusive with respect to the principal's location; and

(E) Any other information that the court would find useful in determining whether the surety acted in good faith to assure the appearance of the principal.

SECTION 2. Tennessee Code Annotated, Section 40-11-118, is amended by adding the following new subsection:

(h) Before accepting a bail deposit from a bondsman, the clerk must require the bondsman to initial each page of the bond order, indicating that the bondsman has read and is aware of any conditions of bond imposed on the defendant. The clerk must provide a copy of the initialed bond order to the bondsman and maintain a copy in the defendant's file.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.